



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/15/2026 - 09:00 AM

09/08/2026

4:06 PM

Page 7

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

26-PRO-00488	IN THE MATTER OF THE FREDERICK A. FORSTER TRUST DATED JANUARY 13, 1995	TRUSTEE'S PETITION FOR INSTRUCTIONS [PROBATE CODE SECTIONS 17200 et seq]
Line 11	Petitioner: Evans, Victoria (LYTLE, BRETT S.) Decedent: Forster, Frederick A	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom allowed)

The Petition for Instructions is DENIED as every request made is in contradiction to what appears to be the intent of the Settlor. The request for instructions and confirmation that the Trustee may distribute the Trust assets directly the grandchildren who are under the age of 25 is DENIED for failure to provide good cause as to why the Settlor's intent should not be respected. The only argument made is that these four beneficiaries are capable of handling their own financial affairs. That does not overcome the intent of the settlor.

The request that the Court determine that the transfer to Daniel Forster was a gift and not a loan is DENIED because the facts and information provided appear to support a finding that the transfer to Daniel Forster was a loan.

The request that the Court determine that the transfer to Katherine Callan was a gift and not a loan is DENIED because the facts and information provided support a finding that the transfer to Katherine Callan was a loan.

The request that the Court determine that the transfer to Joseph Forster was a loan of no value and instruct Petitioner to forgo efforts to collect on the alleged loan is DENIED because the facts and information provided do not support this request.

The request for the Court to instruct that the Trust continue its litigation against Ms. Daetwyler to recover fees and costs incurred in clearing the Property title in the approximate amount of \$60,501.96 is DENIED without prejudice due to insufficient information provided. There is insufficient information provided for the court to determine that it should instruct the Trustee to continue in this litigation; it is entirely up to the Trustee whether she believes this is a proper pursuit on behalf of the Trust.

The Petition to Confirm Property as Trust Assets is CONTINUED to December 1, 2026 at 9:00 a.m. for Petitioner to:

- (1) Comply with Probate Code 851 and use DE-115; and
- (2) Given that the prayer of the Petition requests that the Court confirm the property listed on the Schedule A be confirmed to the Trust, Petitioner must clarify which property on the Schedule A



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Petitioner seeks to confirm as belonging to the Trust given that the Petition does not state that all assets listed on the Schedule A are either titled in Settlor's individual name or the name of the Trust. Further, Petitioner fails to provide legal authority this Court to make a determination of ownership as to real property located in Ireland, although petitioner alleges that it is already held in the Trust.

26-PRO-00507	Guardianship of Irene Vutaeli Koroilavesau	
Line 12, 13	Petitioner: Koroilavesau, Semi Tuleca (SHAMIEH, GHASSAN J.) Petitioner: Koroilavesau, Patrina Rubina (SHAMIEH, GHASSAN J.) Ward: Koroilavesau, Irene Vutaeli Proposed Guardian: Koroilavesau, Patrina Rubina Proposed Guardian: Koroilavesau, Semi Tuleca Father: KOROILAVESAU, LARS PETERSEN Mother: KALANAKADAVU, EPI SAPI	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings

Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

The Court intends to GRANT both petitions. The minor's presence at the hearing is waived.

The Court finds and orders:

1. Patrina Rubina Koroilavesau and Semi Tuleca Koroilavesau be appointed as guardians of the person of Irene Vutaeli Koroilavesau.
2. The assessment of \$850 for the cost of the investigation be waived on the basis of hardship.
3. If the guardianship petition is granted, the guardians shall immediately notify the Court in writing of any significant change in circumstances impacting their ability to continue as the minor's guardians, including, but not limited to:
 - a) Changes in the guardians' address and/or telephone numbers.
 - b) If the minor is no longer residing in the guardians' home, why the minor moved and the name, relationship, address and telephone number of the person with whom the minor resides.
 - c) Any significant physical or mental health issues of the guardians or minor impacting the ability of the guardians to continue in their capacity as guardian.